

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MACK BLOUNT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE MAYKY
SANTOS, Shield No. 564, SERGEANT MICHAEL
MILLER, and POLICE OFFICER ROBERT A. JAQUEZ,
Shield No. 003895,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Bronx
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 26, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE MAYKY SANTOS, Shield No. 564, Narcotics Borough Bronx, One Police
Plaza, New York, NY, 10038
SERGEANT MICHAEL MILLER, Narcotics Borough Bronx, One Police Plaza, New
York, NY, 10038
POLICE OFFICER ROBERT A. JAQUEZ, Shield No. 003895, Narcotics Borough
Bronx, One Police Plaza, New York, NY, 10038

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MACK BLOUNT, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On May 27, 2015, at approximately 6:00 a.m., plaintiff, Mack Blount, while lawfully inside of his apartment located at 1420 Washington Avenue, Apt. 7A, Bronx, New York, was subject to an unlawful search, seizure, false imprisonment and false arrest by the defendant New York City police officers. Plaintiff was transported against his will to the 42nd Precinct where he was unlawfully searched, unlawfully strip-searched, fingerprinted, photographed, and detained in a filthy holding cell for numerous hours. Thereafter plaintiff was transported by defendants against his will to and Bronx County Central Booking for approximately 30 hours. Thereafter, plaintiff was maliciously prosecuted and denied a right to a fair trial until October 11, 2016 when all charges against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied his rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MACK BLOUNT is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE MAYKY SANTOS, Shield No. 564, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE MAYKY SANTOS, Shield No. 564, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

5. DETECTIVE MAYKY SANTOS, Shield No. 564, is being sued in his individual and official capacity.

6. SERGEANT MICHAEL MILLER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT MICHAEL MILLER, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

8. SERGEANT MICHAEL MILLER, is being sued in his individual and official capacity

9. POLICE OFFICER ROBERT A. JAQUEZ, Shield No. 003895, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER ROBERT A. JAQUEZ, Shield No. 003895, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

11. POLICE OFFICER ROBERT A. JAQUEZ, Shield No. 003895, is being sued in his individual and official capacity

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On May 27, 2015, at approximately 6:00 a.m., plaintiff was lawfully alone in his bed located in his bedroom inside of his apartment, located at 1420 Washington Avenue, Apt. 7A, Bronx, New York when the defendant NYPD Bronx Borough Narcotics Officers unlawfully broke down the front door of the apartment and unlawfully entered the apartment and plaintiff's bedroom with their guns drawn and pointed at plaintiff, without a lawfully obtained warrant and without probable cause or legal justification, causing plaintiff to feel startled, frightened for his life, and terrified.

18. At the time the defendant officers unlawfully entered plaintiff's apartment he was in bed only dressed in boxer shorts.

19. The unlawful and sudden entry of the defendant officers into plaintiff's home while he was sleeping caused plaintiff extreme emotional distress, embarrassment, humiliation and fear for his life and his safety.

20. Although plaintiff was almost completely naked when the defendants raided the apartment, the defendant officers did not immediately permit him to get dressed with the sole intent of humiliating plaintiff and causing him severe emotional distress by forcing plaintiff to remain almost completely nude in front of the officers, his mother, and his mother's boyfriend.

21. Defendants caused plaintiff additional emotional distress by unlawfully searching plaintiff's person, including inside of his boxer shorts, without probable cause or legal justification.

22. The defendant officers unlawfully searched plaintiff's person and the entire apartment, damaged property throughout the apartment, including but not limited to property that belonged to plaintiff, emptied food containers, and created an extreme mess in the apartment.

23. Plaintiff was unlawfully handcuffed and transported against his will to the 42nd Precinct where he was unlawfully strip searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

24. At no time did the officers have an objective factual basis to establish probable cause to accuse and/or arrest plaintiff for allegedly committing any crime, nor did the

officers have a factual basis or probable cause to suspect plaintiff secreted drugs, weapons or contraband underneath her clothing.

25. . In fact, plaintiff was almost completely naked when the officers initially detained him in the apartment, the officers immediately searched inside of plaintiff's boxer shorts at the apartment and did not recover any illegal contraband from claimant pursuant to defendants searches of him.

26. Additionally, the defendant officers supervised plaintiff getting dressed and did not allow plaintiff any opportunity to secrete contraband underneath his clothing after he was dressed. Any reasonable person would have clearly understood that plaintiff did not have any opportunity to secrete an illegal substance underneath he clothes because he was almost completely naked when the officers entered the apartment and unlawfully seized him and was closely watched by the officers thereafter.

27. . The defendant officers strip searched plaintiff at the 42nd Precinct with the express intent to embarrass and humiliate him, emasculate him, and cause him to suffer additional emotional distress.

28. The officers strip-searched plaintiff with purely malicious intent and were aware throughout the entire strip-search that there was zero law enforcement value gained by strip searching plaintiff, but the defendants felt it was necessary to abuse their authority, humiliate plaintiff and assert their dominance over plaintiff while he was completely naked at a police station in an extremely vulnerable state.

29. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

30. Plaintiff was detained at the precinct for approximately 12 hours before he was transported to Bronx Central Booking where he was detained in larger holding pens until the evening hours on May 28, 2015.

31. On the evening of May 28, 2015 plaintiff was arraigned in Bronx Criminal Court and charged with serious felony and misdemeanor narcotics related crimes that he did not commit and that the officers lacked probable cause or any factual basis to accuse plaintiff of committing.

32. At no time relevant herein did plaintiff violate the law in any manner, nor did the officers have an objective basis to believe he committed a crime or violated the law.

33. The defendant police officers intentionally provided the Bronx County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes he did not commit.

34. On May 28, 2015, plaintiff was released from Bronx Criminal Court on his own recognizance at arraignment.

35. Thereafter, plaintiff was required to make approximately ten additional court appearances in Bronx Criminal Court and on October 11, 2016 all criminal charges brought by defendants against plaintiff were dismissed and sealed in their entirety and the malicious and unlawful criminal prosecution terminated in plaintiff's favor.

36. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

37. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

38. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

39. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to charge plaintiff with and prosecute him for allegedly committing several serious felony and misdemeanor crimes.

40. A malicious prosecution was initiated against plaintiff by defendants without probable cause based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, and sworn to by defendants in the accusatory instrument filed with the court by the defendant officers.

41. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, strip search, false arrest, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

42. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

43. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

44. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that “there is a ‘[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.’” Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

45. As a result of defendant City of New York and the New York City Police Department’s deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause to believe a prisoner has secreted contraband underneath his clothing, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis that establishes probable cause and a legal basis to conduct the strip search..

46. The unlawful search, false arrest/ imprisonment, unlawful strip search, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

47. Some of the police officer defendants observed the violation of plaintiff’s rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, and false arrest of plaintiff.

48. The unlawful search, false arrest, and false imprisonment, unlawful strip search, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff’s Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip-searched, falsely arrested, falsely imprisoned, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff’s right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. Defendants lacked probable cause to search plaintiff and her apartment.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

63. Defendants commenced and continued a criminal proceeding against plaintiff.

64. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

65. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

66. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

72. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

73. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

74. In withholding/creating false evidence against plaintiff Mack Blount, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

75. As a result of the foregoing, plaintiff Mack Blount, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Unlawful Strip Search

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion or probable cause to believe plaintiff was concealing weapons or other contraband underneath her clothing based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unlawful Strip-Searching All Prisoners Arrested For A Drug Related Crime

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

85. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01-CIV-6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. Oct. 23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

86. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

89. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched on two occasions at the 42nd Precinct by the individually named defendant police officers.

90. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

EIGHTH CAUSE OF ACTION**Failure to Intervene**

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Mack Blount demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 26, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 26, 2018

/s/
STUART E. JACOBS